

BOILER INSTALLATION AGREEMENT

Terms & Conditions of Installation

BETWEEN

Margav Renewables Ltd (Company No. 12580649), trading as Margav Heating, registered in England and Wales, whose registered office is Unit 7–8 Kimberly Way, Brereton, Rugeley, WS15 1RE (the "Company");

AND

The Customer, being the person or entity identified in the Quote (the "Customer").

1. Definitions and Interpretation

- 1.1 "Agreement" means this contract together with the Quote and any documents expressly incorporated into it.
- 1.2 "Goods" means all equipment, materials, and components supplied by the Company.
- 1.3 "Services" means the installation works and related services described in the Quote.
- 1.4 "Price" means the total amount payable for the Goods and Services as set out in the Quote, subject to any variations under this Agreement.
- 1.5 "Site" means the property where the Services are to be performed.

2. Formation of Contract

- 2.1 This Agreement constitutes the entire agreement between the Company and the Customer and supersedes all prior discussions, representations, or agreements.
- 2.2 The Customer acknowledges that they have not relied on any representation or statement not expressly set out in this Agreement.
- 2.3 Nothing in this Agreement limits or excludes liability for fraudulent or negligent misrepresentation.
- 2.4 Any terms proposed by the Customer shall not apply unless expressly agreed in writing by the Company.

3. Statutory Cancellation Rights

- 3.1 Where the Customer is a consumer, they have the right to cancel this Agreement within 14 days of acceptance in accordance with the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013.
- 3.2 If the Customer requests that work begins within the 14-day cancellation period, the Customer expressly acknowledges and agrees that:
 - work may begin before the end of the cancellation period
 - if the Customer cancels after work has started, they must pay for Services already performed
 - if the Services are fully completed within the cancellation period, the Customer will lose their right to cancel
- 3.3 If Goods have been specially ordered or manufactured for the Customer and cancellation occurs after ordering, the Company may charge a reasonable restocking or cancellation fee where permitted by law.

4. Surveys and Existing System Conditions

- 4.1 The Price is based on a visual and non-intrusive assessment of the existing heating, plumbing, gas, and electrical systems.
- 4.2 The Company assumes that existing systems are in reasonable working order unless otherwise stated.

4.3 If during installation the Company discovers that existing systems are unsafe, non-compliant, or unsuitable for the installation, additional works may be required.

4.4 Where unsafe gas installations are identified, the Company must act in accordance with the Gas Industry Unsafe Situations Procedure (GIUSP) and applicable Gas Safe regulations.

4.5 Any additional work required to bring the installation into compliance with applicable safety standards will be discussed with the Customer and may incur additional charges.

5. Site Access and Working Conditions

5.1 The Customer shall ensure the Company has safe, clear, and reasonable access to the Site during normal working hours.

5.2 The Customer shall ensure that the work area is reasonably cleared of furniture, belongings, and obstructions prior to installation.

5.3 If the Company is unable to carry out the Services due to lack of access, unsafe conditions, or obstruction, the Company may reschedule the installation and may charge reasonable additional costs incurred.

6. Site Conditions and Hazards

6.1 The Customer must provide accurate information regarding known hazards or structural issues at the Site.

6.2 If suspected Asbestos Containing Materials (ACMs) are discovered, the Company will stop work immediately until testing or removal has been completed by a qualified specialist.

6.3 The cost of asbestos testing or removal shall be the responsibility of the Customer.

6.4 The Company shall not be responsible for the failure of existing pipework, seals, radiators, or joints where such failures occur due to the condition or age of the existing system, except where caused by the Company's negligence.

7. Existing Heating System Condition

7.1 The Customer acknowledges that the performance of the new heating system may be affected by the condition of the existing pipework, radiators, and heating components.

7.2 The Company may recommend system cleaning or flushing in accordance with industry standards where required.

7.3 The Company shall not be responsible for faults, blockages, leaks, or circulation issues arising from the condition of the existing heating system unless caused by the Company's negligence.

8. Delays

8.1 The Company will use reasonable efforts to complete the Services on the agreed installation date.

8.2 The Company shall not be liable for delays caused by circumstances beyond its reasonable control including:

- supplier delays or material shortages
- severe weather conditions
- unforeseen site conditions
- safety compliance requirements
- restricted access to the Site

8.3 Where delays occur, the Company will notify the Customer and arrange a revised installation date as soon as reasonably practicable.

9. Price and Payment

9.1 The Price and payment schedule shall be as specified in the Quote.

9.2 Unless otherwise agreed in writing, the balance of the Price shall be payable upon completion of installation.

9.3 The Customer must not unreasonably withhold payment for minor defects or snagging issues that do not substantially affect the operation of the system.

9.4 The Company reserves the right to adjust the Price where additional work is required due to unforeseen Site conditions or changes requested by the Customer.

9.5 If material costs increase significantly between the Quote date and installation date, the Company may revise the Price. The Customer will be notified in advance and may cancel the Agreement without penalty.

10. Ownership of Goods

10.1 Ownership of the Goods shall remain with the Company until the Price has been paid in full.

10.2 Risk in the Goods shall pass to the Customer upon delivery to the Site.

11. Warranties and Quality

11.1 The Company will carry out the Services with reasonable care and skill in accordance with the Consumer Rights Act 2015.

11.2 Manufacturer warranties relating to Goods supplied will be passed to the Customer where applicable.

11.3 Any defects arising from installation will be remedied by the Company within a reasonable period after notification.

12. System Performance

12.1 Any estimates relating to energy savings, system efficiency, or running costs are provided for guidance only.

12.2 Actual performance may vary depending on property characteristics, existing heating infrastructure, user behaviour, insulation levels, weather conditions, and system maintenance.

12.3 The Company does not guarantee specific energy savings unless expressly stated in writing.

13. Limitation of Liability

13.1 Nothing in this Agreement excludes or limits liability for:

- death or personal injury caused by negligence
- fraud or fraudulent misrepresentation
- any liability that cannot legally be excluded

13.2 Subject to clause 13.1, the Company's total liability arising under this Agreement shall not exceed the total Price paid by the Customer.

13.3 The Company shall not be liable for indirect or consequential losses including loss of use, loss of heat, or loss of income except where caused by the Company's negligence.

14. Photographs and Media

14.1 The Company may take photographs of the installation for internal records, quality control, and compliance documentation.

14.2 Photographs or videos will only be used for marketing purposes with the Customer's prior consent.

15. Termination

15.1 The Company may suspend or terminate this Agreement if the Site is deemed unsafe or if the Customer commits a material breach.

15.2 Either party may terminate the Agreement if the other party commits a material breach which is not remedied within a reasonable period following written notice.

16. Dispute Resolution

16.1 The parties shall first attempt to resolve any dispute through good faith negotiation.

16.2 If the dispute cannot be resolved within 14 days, the parties may attempt mediation before commencing court proceedings.

17. Governing Law

17.1 This Agreement shall be governed by and interpreted in accordance with the laws of England and Wales.